

BC683554 BC683554

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Case Number: BC683554 Hearing Date: September 23, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: September
23, 2026

CASE NAME: John

Dian Lei v. Shan Shen, et al.

CASE NO.: BC683554

MOTION

TO TAX COSTS

MOVING PARTY: Defendant/Cross-Complainant

1804 Bannister, LLC and Defendant Shan Shen

RESPONDING PARTY(S): Plaintiffs in Intervention

Stephen E. Gallup and SJB Capital, Inc. 401(k) Profit Sharing Plan

REQUESTED RELIEF:

1. An

order taxing Plaintiffs in Interventions' memorandum of costs pertaining to jury fees, service of process, court reporter fees, interpreter fees, and other items.

TENTATIVE RULING:

1. Motion

to tax costs is GRANTED, in part, in the amount of \$556.20.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On November 14, 2017, John Dian Lei ("Plaintiff") filed a Complaint against Defendants Shan Shen, Fa Chan Chuong, Joan Huang, 1804 Bannister, LLC, Bannis Corporation and Does 1 through 10. The complaint alleged 19 causes of action: (1) Battery; (2) Intentional Infliction of Emotional Distress, (3) Negligence, (4) Intentional Misrepresentation, (5) Negligent Misrepresentation, (6) Concealment, (7) Civil Conspiracy, (8) Breach of Fiduciary Duty, (9) Abuse of Control, (10) Corporate Waste, (11) Unjust Enrichment, (12) Breach of Contract, (13) Common Count: Goods And Services Rendered, (14) Common Count: Money Had and Received, (15) Common Count: Open Book, (16) Trespass to Chattel, (17) Conversion, (18) Alter Ego, and (19) Request for Preliminary Injunction. The complaint alleges that the Plaintiff grew Jujube and Lychee trees on the Subject Property and was a majority shareholder of Bannis. Plaintiff later entered into a lease agreement with Zhu, which allowed the cultivation of the trees. The complaint further alleges that the Defendants conspired to defraud the Plaintiff, specifically to take control of Bannis.

On December 18, 2017, Defendant 1804 Bannister, LLC filed a Cross-Complaint.

On April 6, 2018, Defendant Joan Huang filed an Answer.

On June 22, 2018, Plaintiff filed a Second Amended Complaint.

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On December 20, 2018, Joan Huang, Defendant in matter No. BC683554, filed a complaint against Defendant Shan Shen, 1804 Bannister, LLC, Fung Liu, a.k.a. John Dian Lei as well as Bannis Corporation – as a nominal defendant. This is Case No. 18PSCV00205.222

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On February 14, 2019, a Notice of Related Case indicated that matter BC683554 is related to case No. 18PSCV00205.2222

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On May 24, 2019, Defendant Bannister filed a Demurrer without a Motion to Strike.2222

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On October 17, 2019, Plaintiff filed an Amended Complaint.2222

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On January 8, 2020, Plaintiff filed an Answer.2222

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On January 17, 2020, Defendant Bannister filed a Demurrer without Motion to Strike.2222

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On February 28, 2020, Defendant Shen filed a Demurrer without a Motion to Strike.2222

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On November 13,
2020, Defendant Bannister and Shen filed an Answer. 333

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On July 23, 2021,
Plaintiff filed an Amendment to Complaint, Fictitious/Incorrect Name, naming Doe
1 as ABC Green Farm, Inc. 3333

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On April 22,
2022, Defendant Bannister filed a Motion for Leave to Amend Cross-Complaint. 3333

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On September 22,
2022, Plaintiff Huang filed a Motion for Leave to file a Second Amended
Complaint which the court GRANTED. 3333

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On November 16, 2022, Plaintiffs in Intervention filed a
First Amended Complaint in Intervention. 33

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On November 16, 2022, Plaintiffs in Intervention filed a
Motion for Summary Adjudication which the court DENIED. 33

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On December 9, 2022, Defendant Fung Liu 3 filed an Answer to
the First Amended Complaint in Intervention. 33

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On December 16, 2022, Plaintiff filed a Third Amended
Complaint. 33

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On January 13, 2023, Defendant Fung Liu filed an Answer to the Third Amended Complaint.↻↻

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On January 17, 2023, Defendants 1804 Bannister LLC and Shan Shen filed an Answer to the Third Amended Complaint.↻↻

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On January 17, 2023, Defendants 1804 Bannister LLC and Shan Shen filed an Answer to the First Amended Complaint in Intervention.↻↻↻

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On February 27, 2023, Plaintiffs in Intervention filed a fictitious name amendment correcting DOE 1 to ABC Green Farm, Inc.↻↻

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On September 19, 2023, the court entered judgment after court trial for defendant Shan Shen.↻↻

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On October 9, 2023, Plaintiff John Dian Lei filed a Notice of Appeal.↻↻

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On June 25, 2024, Counsel for Plaintiff Joan Huang filed a motion to be relieved as counsel which the court GRANTED.↻↻

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On December 6, 2024, Counsel for Plaintiff John Dian Lei filed a motion to be relieved as counsel which the court GRANTED.↻

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On April 2, 2025, a bench trial¿commenced.¿¿

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On April 11, 2025,¿Defendants¿moved for a directed verdict.

The court set¿a briefing schedule as follows: closing trial briefs due June 16, 2025; oppositions due July 8, 2025; replies due July 28, 2025; the court will take the matter under submission on July 29, 2025;¿Non-Appearance case review set for July 29, 2025.¿¿

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On May 27, 2025,¿Plaintiffs in intervention¿Stephen E. Gallup and SJB Capital Inc. 401(K) Profit Sharing Plan (Intervenors) filed a motion for leave to amend to conform to proof at trial. The court ordered further briefing and continued the hearing to August 25, 2025. On August 25, 2025, the court took the matter under submission for consideration with the Non-Jury Trial.

On November 17, 2025, the court issued its proposed tentative statement of decision. The court issued the following uniform orders:

A. The March 5, 2015 Lease and Loan Agreement is rescinded.

B. Bannis Corporation is declared the equitable owner of the Bannister Property.

C. A constructive trust is imposed over all proceeds of the sale to ABC Farms.

D. Shen and Lei are jointly and severally liable for breach of fiduciary duty.

E. Huang is barred from recovery under unclean-hands doctrine for aiding and abetting Shen's

breach of fiduciary duty.

F. A receiver is appointed to marshal and distribute assets.

G. Gallup / SJB Capital 401(k) Plan is recognized as the sole confirmed innocent shareholder pending receiver proceedings.

H. Prejudgment interest shall accrue from the date of the sale through judgment. I. All inconsistent relief is denied.

On December 1, 2025, Plaintiff Huang filed objections to the statement of decision which the court reviewed.

On December 2, 2025, Defendant 1804 Bannister filed objections which the court reviewed.

On December 4, 2025, Plaintiffs in Intervention filed objections which the court reviewed.

On March 9, 2026, the court issued its final statement of decision. The court ruled:

A. The March 5, 2015 Lease and Loan Agreement is rescinded.

B. Bannis Corporation is declared the equitable owner of the Bannister Property.

C. A constructive trust is imposed over all proceeds of the sale to ABC Farms.

D. Shen and Lei are jointly and severally liable for breach of fiduciary duty.

E. Huang is barred from recovery under unclean-hands doctrine for aiding and abetting Shen's breach of fiduciary duty.

F. A receiver is appointed to marshal and distribute assets.

G. Gallup / SJB Capital 401(k) Plan is recognized as the

sole confirmed innocent shareholder pending receiver proceedings.

H. Prejudgment interest shall accrue from the date of the sale through judgment.

I. All inconsistent relief is denied.

On March 12, 2026, Plaintiffs in Intervention filed a motion for attorneys' fees, paralegal's fees, and other professional's fees. On May 21, 2026, Huang filed an opposition. That same date, Defendants 1804 Bannister and Shen filed a separate opposition. On May 27, 2026, Plaintiffs in Intervention filed a combined reply. The court continued the hearing to October 29, 2026.

On June 8, 2026, the court entered Judgment.

On June 9, 2026, Plaintiffs in Intervention filed a memorandum of costs. On June 22, 2026, 1804 Bannister and Shen filed the instant motion to tax costs. On September 8, 2026, Plaintiffs in Intervention filed an opposition. On September 16, 2026, 1804 Bannister and Shen filed a reply.

LEGAL STANDARD:

"The right to recover any of the costs of a civil action "is determined entirely by statute." "[Citation.] " "[I]n the absence of an authorizing statute, no costs can be recovered by either party." "[Citation.] 'Section 1032 governs the award of costs of trial court litigation.' [Citation.]" (Charton v. Harkey, (2016) 247 Cal.App.4th 730, 737.)

"Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc., § 1032, subd. (b).) (Emphasis added.) Code of Civil Procedure section 1032, subdivision (a) defines a "prevailing party" as "[1] the party with a net monetary recovery, [2] a defendant in whose favor dismissal is entered, [3] a defendant where neither plaintiff nor defendant obtains any relief, and [4] a defendant as against

those plaintiffs who do not recover any relief against that defendant.”

Costs are allowable if incurred, whether or not paid. (Code Civ. Proc., § 1033.5, subd. (c)(1).) Costs must also be “reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation” and must be reasonable in amount. (Code Civ. Proc., § 1033.5, subd. (c)(2)-(3).)

A prevailing party claiming costs must file and serve a memorandum of costs either (1) within 15 days after the date of service of a notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5, (2) 15 days after the service of written notice of entry of judgment or dismissal, or (3) within 180 days after entry of judgment, whichever is first. (Cal. Rules of Court, rule 3.1700, subd. (a).)

Any motion to strike or tax costs must be served and filed 15 days after service of the memorandum, plus an additional 5 days if served by mail or 2 days if served electronically. (Cal. Rules of Court, rule 3.1700, subd. (b)(1).) “Unless objection is made to the entire cost memorandum, the motion to strike or tax costs must refer to each item objected to by the same number and appear in the same order as the corresponding cost item claimed on the memorandum of costs and must state why the item is objectionable.” (Cal. Rules of Court, rule 3.1700, subd. (b)(2).)

ANALYSIS:

Prevailing Party

As provided by statute, a prevailing party “includes the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant.” (Chaparral

Greens v. City of Chula Vista (1996) 50 Cal.App.4th 1132, 1152 [citing CCP § 1032(a)].

Here, the parties do not dispute that Intervenor is the prevailing party for purposes of this motion.

Accordingly, Intervenor is prevailing party.

ii.

Reasonable

Costs

Item 2: Jury Fees

Moving Parties contend this is improper because the court determined the parties did not timely post jury fees. Otherwise, the requested amount exceeds the \$150 posted amount by \$11.39.

Intervenor argues the fees are expressly recoverable per statute and the amount includes the court's electronic filing fee plus the jury fee deposit. They add that it does not matter that they waived jury trial to recover the fees.

Moving Parties reiterate their argument. They also argue that the court should reduce the amount by 50% to remove Huang's share.

Jury fees are recoverable costs. (CCP § 1033.5(a)(1).)

The notice of posting jury fees was filed on May 17, 2021 on behalf of Huang and Intervenor. (May 17, 2021 Notice of Posting Jury Fees.) Moving Parties are correct that Huang cannot recover her fees. Their argument to reduce this fee by 50% is well taken. However, Intervenor sufficiently demonstrated that the full amount was \$161.39 due to the deposit amount, filing fee, and convenience fee imposed by the electronic filing provider. (Declaration of Aaron McKwon (McKwon Decl.), Exhibit C.)

Accordingly, the costs in Item 2 are taxed 50% to \$80.70.

Item 5: Service of Process

Moving Parties contend this is unrelated to claims against 1804 Bannister but to abandoned claims against ABC Green Farms (a third party).

Intervenors argue that the process fees were to issue third party subpoenas (\$256.25) and serve chambers copies of documents (\$132.85). However, they concede the cost should be taxed by \$298.65 due to lack of receipts.

Moving Parties reply that the court should tax the \$132.85 associated with Huang but concede Intervenors can recover \$265.25 for third-party subpoena service.

Service of process fees are recoverable. (CCP § 1033.5(a)(4)(B).)

Here, these costs are recoverable, in part. First, the court has never required courtesy copies delivered to chambers. Therefore, the \$132.85 to delivery courtesy copies were not reasonable or necessary for the litigation. The court otherwise accepts the parties' concession as to the remaining costs.

Accordingly, the court taxes \$298.65 conceded by Intervenors and \$132.85 in courtesy copy costs for a total of \$431.50.

Item 11: Court Reporter Fees

Moving Parties contend this is not rooted to a hearing or otherwise explain how the fees are established by statute.

Intervenors argue they mistakenly included some court reporter fees in Item 15 instead of Item 11.

Moving Parties reply that Intervenors cannot recover these fees because the parties had agreed to share in these costs.

CCP § 1033.5(a)(11) allows for "[c]ourt reporter fees as established by statute." That statute is Gov. Code § 68086. (Gov. Code § 68086(c).) If there is no official court reporter provided by the court, a party is free to obtain a private official court reporter.[1]

(Gov. Code § 68086(d)(2).)

Transcripts of court proceedings not ordered by the court are not recoverable. (CCP § 1033.5(b)(5).)

a. Agreement
of Parties re Apportionment of Costs

When “the parties agree to share costs during litigation, the courts will enforce those agreements as written under” provided the written agreement is unambiguous and there is no provision to allow recovery of an apportioned fee to a prevailing party. (Anthony v. Li (2020) 47 Cal.App.5th 816, 824.) However, there is no evidence of a written agreement let alone an agreement that unambiguously indicates the prevailing party can or cannot recover their apportioned costs. Therefore, Anthony does not apply to this matter.

b. Reasonableness

To start, there is significant confusion as to what costs Intervenor seek. They admit to typographic errors where they included some costs in Item 15 that belong here or in other categories. In sum, Intervenor seek to recover court reporter fees for trial reporting in the amount of \$4,831.25. (Opp. 6:20-24.) This represents 9 days of trial (8 full days and one half-day) and one extra-time fee. (Ibid.) This is reasonable.

Therefore, the court declines to tax these costs.

Item 12: Interpreter
Fees

Moving Parties contend there is no explanation supporting this request and, to the extent it exceeds an interpreter for Shen’s deposition, is not allowed.

Intervenor argues the interpreter fee includes a prorated fee for trial and the cost to interpret various trial exhibits.[2]

Moving Parties reply that these costs are not allowed by statute, are otherwise unidentified costs, and are unreasonable (\$60 per page

of translation).

The statute allows for recovery of “[c]ourt interpreter fees for a qualified court interpreter authorized by the court for an indigent person represented by a qualified legal services project, as defined in Section 6213 of the Business and Professions Code, or a pro bono attorney, as defined in Section 8030.4 of the Business and Professions Code.” (CCP § 1033.5(a)(12).)

Here, the interpreter fees are not authorized under this provision because no one was an indigent party or a pro bono attorney. However, the fees are recoverable pursuant the statute.

“Items not mentioned in this section and items assessed upon application may be allowed or denied in the court’s discretion.” (CCP § 1033.5(c)(4).)

It is undisputed that an interpreter were reasonably necessary to the conduct of the litigation due to witnesses and exhibits being in Mandarin.

Therefore, the court DENIES the motion to tax these items.

Item 15: Other

Moving Parties contend there is no evidence supporting the \$31,571.44 in “other” costs or how they are recoverable under CCP § 1033.5.

Intervenors argue these costs include RealTime transcription used by the court during trial, Intervenor’s portion of the court report’s daily parking for trial, court-ordered mediation costs, hotel costs, conference room costs, parking, and meals for counsel who all reside out of Los Angeles County. However, they concede that the court should tax \$2,875.45 of these costs.

Moving Parties reply that there is still no explanation for these costs, the parties agreed to share some of these costs (court reporter/RealTime transcript), agreement to share the mediation fee, and Intervenor’s decision to hire non-local counsel does not give him the right to recover their accommodation fees. Additionally, the accommodation fees are

unreasonable because they did not need a conference room, valet parking, or wine, or for weekend hotel stays.

“Items not mentioned in this section and items assessed upon application may be allowed or denied in the court’s discretion.” (CCP § 1033.5(c)(4).)

Here, the costs are reasonable in part. First, as noted above, there is no evidence of a written agreement expressly excluding apportioned costs from recovery. Second, the court rejects Moving Parties’ argument that counsel’s lodging during trial was not reasonable. However, the court agrees that Intervenor’s request for \$44 in wine is unreasonable. (McKown Decl., Exhibit J.)

Therefore, the court taxes \$44.00 from this category.

Accordingly, the court GRANTS the motion to tax costs, in part, in the amount of \$556.20.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Motion to tax costs is GRANTED, in part, in the amount of \$556.20.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: September 23, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court

[1]

There is an order appointing court approved reporter as official reporter pro tempore for trial. (April 2, 2025 Order.)

[2]

Alternatively, the cost to interpret trial exhibits should be recoverable under Item 15.